

Nova Scotia

N.S. spent \$1M on lawyers in disciplinary case involving Halifax cardiologist

Gabrielle Horne subsequently won \$1.4M lawsuit against former Capital District Health Authority

[Jean Laroche](#) · CBC News · Posted: Sep 28, 2021 5:00 AM EDT | Last Updated: September 28, 2021



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Dr. Gabrielle Horne, shown here in 2016, won a \$1.4 million lawsuit against the former Capital District Health Authority for loss of reputation and career. The Nova Scotia Court of Appeal later reduced that jury award to \$800,000. (Anjuli Patil/CBC)

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Documents the Nova Scotia government has finally released after long insisting they be kept secret show \$1 million in taxpayers' money was spent on outside lawyers taking part in a lengthy disciplinary process nearly two decades ago involving Halifax cardiology researcher Gabrielle Horne.

The dispute centred on Horne's attempts to have her hospital privileges reinstated. They had been reduced following a disagreement with colleagues on who should get part of the credit for her work, a situation that was called "[a classic case of workplace bullying.](#)"

The figures only include the legal fees from before the time Horne successfully launched a

lawsuit against the former Capital District Health Authority, which a jury concluded in 2016 had acted in bad faith.

Although the CBC requested the legal fees information in September 2016, the provincial government refused to release the figures [until Nova Scotia's information commissioner issued a report critical of the decision to continue to keep the amounts secret](#). The decision to release the records came after the PCs took power from the Liberals in August's general election.

On Monday, Horne called the figure "extremely upsetting."

"I think that was probably a small fraction of what was actually spent," she told CBC.

Four law firms

The figures are included in an email attachment sent to PC Health Minister Chris d'Entremont in 2008. The attachment breaks down the costs over five years, starting in 2002. That's the year Horne's heart research was effectively shut down as a result of having her hospital privileges suspended.

The \$1,024,649.67 was shared among four Halifax law firms: Boyne Clarke, Patterson Palmer, Stewart McKelvey and Wickwire Holm. Lawyers for those firms provided legal advice to the board at the former health authority, as well as two internal professional committees. That \$1 million is in addition to the time put in by lawyers in-house.

The amount paid to defend the authority against Horne's lawsuit for loss of reputation and career, and the appeal it filed [after a jury awarded her \\$1.4 million](#), remains secret. Nova Scotia hospitals are insured by Nova Scotia Health Organizations Protective Association, which handles property damage claims as well as lawsuits against hospitals and their staff.



Horne, shown in 2020, is writing a book about her experience. (Bernadine Umlah)

CBC asked the association how much it spent on defending the former health authority during the 33-day jury trial that ended with a landmark judgment in Horne's favour, but the CEO refused to share that information.

"HOPA, like other insurers, does not disclose commercially sensitive information," said Deborah Rozee. "Accordingly, HOPA does not disclose the insurance premiums paid by its insureds or legal expenses incurred by HOPA."

Although both the association and the province said the defence of the suit didn't come at the expense of the health-care budget, Horne remains sceptical.

"I'm not a financial expert, but my understanding is that N.S. HOPA is paid for by health-care

bodies within Nova Scotia, so doesn't that mean health-care dollars," she said. "Surely that's resulted in a significant increase in their premiums."



"That money, again, would be paid for by Nova Scotia taxpayers."

Refused to release information

The health authority was successful in its appeal to have the \$1.4-million award reduced to \$800,000. The \$167,000 Horne was awarded by the jury for legal fees she incurred to regain her hospital privileges between 2002 and 2006 remained the same.

The Health Department initially justified withholding information on legal expenses based on two exemptions under freedom-of-information legislation: the disclosure could "harm the financial or economic interests" of the provincial government or its ability to "manage the economy and result in undue financial loss or gain to a third party."

In her Aug. 18 review report, Information Commissioner Tricia Ralph found that the Department of Health "did not meet its burden to prove the information was exempt from disclosure." She recommended the department disclose the record in full.

The provincial government had 30 days to comply but, unlike other provinces, the law in Nova Scotia does not give Ralph order-making powers, and so the department could simply refuse.

Premier Tim Houston [has promised to give the information commissioner order-making powers](#).

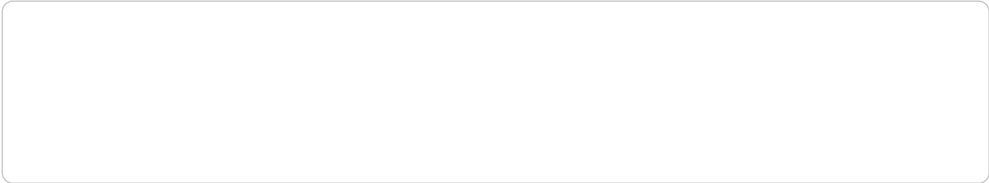
'Working hard to rebuild my life'

Horne said the almost \$1 million she received in the suit went to pay lawyers who handled her case. She has started new research and has written a book detailing her legal battle to try to restore her reputation and continue her research.

"I have been working hard to put this experience behind me and rebuild my life," said Horne.

She hopes to find a publisher for her book so that the public would hear her story in an effort to "give people a window into this kind of behaviour."

"It used to be that people of privilege could get away with doing extraordinarily wrong things if they have power or were well-connected," she said. "I think our society has changed and I think that we are now living in an age where the public does not tolerate that behaviour."



"I hope that there's a good discussion and we all learn from this, and I just don't want to see something like this ever happen again."

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